

Court No. - 29

Case :- WRIT - C No. - 20512 of 2025

Petitioner :- Sheelu

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Suresh Yadav

Counsel for Respondent :- C.S.C.,Gaurav Singh,Krishna Agarawal

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Shri Puneet Kumar Shukla, learned counsel holding brief of learned counsels for the respondent - Dakshinanchal Vidyut Vitran Nigam Limited.
2. The instant writ petition is preferred for quashing the recovery certificate dated 19.03.2025 issued under the Electricity Act.
3. At the very outset, learned counsel for the respondent – Electricity Department submits that the matter deserves to be relegated to the Electricity Department, as the impugned proceeding has been initiated under Section 135 of the Electricity Act, and any challenge thereto must first be raised under the Electricity Supply Code, 2005.
4. Considering the aforesaid factual matrix, this Court is of the view that in the absence of any challenge to the said proceedings under the Electricity Act and/or the Electricity Supply Code, 2005, no relief as prayed for can be accorded. Accordingly, the writ petition, being devoid of merit, is dismissed.

Order Date :- 31.7.2025

NLY